

OFFICE OF THE SECRETARY

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April 9, 2019

The Honorable Gerrit W. Wood
Judge of the Superior Court
County of Sacramento
3341 Power Inn Road Dept. 129
Sacramento, CA 95826

Re: David Brando Landeros
CDCR No: AM9173
Case No: 12F01176
Date of Sentence: November 5, 2012

Dear Honorable Gerrit W. Wood:

The purpose of this letter is to provide the court with the authority to resentence inmate David Landeros, AM9173, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Since his arrival to CDCR on November 27, 2012, inmate Landeros has received only one Custodial Counseling Chrono, and has not received any Rules Violation Reports.

Inmate Landeros has taken advantage of opportunities to successfully transition back into society. Landeros has received multiple Laudatory Chrono's, and has been participating in various Self-Help Programs, workshops, Religious Programs, and Inmate Leisure Time Activity Groups including: Alcoholics Anonymous, Narcotics Anonymous, Veteran's Service Dog Classroom, Serenity Yoga Society, The Urban Ministry Institute (TUMI), and a National Crime Victim's Week event. In addition to his Self-Help Activities, inmate Landeros completed Vocational Cosmetology and Vocational Computer Literacy.

There are no active or potential holds, warrants, or detainers and no indication that inmate Landeros is associated with any Security Threat Groups at this time.

The Honorable Gerrit W. Wood

Page 2

Having reviewed the enclosed documentation, it appears that inmate Landeros' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Lloyd G. Connelly, County Court Executive Officer
Sacramento County District Attorney's Office
Sacramento County Public Defender's Office